TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JUNE 24, 2024
MINUTES

STAFF REPORT

Present: Stephen Wood, Chair, Giles Branch, Megan Stevens, Elliott Barrow, Aaron Butner, Molly Hall, Julian Hopkins.
Staff: Chris Swalhah, James Ward, Jane Yager-Baumrind

Mr. Wood called the meeting to order at 6:02 pm.

A. Approval of Agenda

Ms. Stevens moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved to approve the minutes. Mr. Branch second the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments or correspondence, Mr. Wood continued with the agenda.

E. Explanation of Procedures
F. Administration of the Oath

Mr. Wood explained the procedures to the public and administered the oath to those speaking.

G. Business

1. **Case V-23-24, 1242 Main Canal Drive, TMS# 532-12-00-218. Request for relief from §156.303(Table) to allow a 3-foot encroachment into the side setback.**

Mr. Swalhah reviewed staff comments with the Board.

- Mr. Doug Miller, Ms. Linda Miller, owners, and Ms. Shelley Clark-Glidewell, architect, reviewed the request with the Board.

- There being no comments, Mr. Wood moved to Board questions.

- *Mr. Butner moved for approval for a three foot encroachment into the side setback, based on the findings that the angle of the home when built in the 1970s is an extraordinary circumstance and gives it less rear yard, the use of the home is unreasonably restricted due to the width of the existing hallways would impede wheelchair assistance, and there is no detriment to the neighborhood based on favorable letters from neighbors. Mr. Hopkins seconded the motion. Motion passed on a 5 to 2 vote with Mr. Butner, Mr. Hopkins, Ms. Stevens, Ms. Hall, and Mr. Branch in favor; Mr. Barrow and Mr. Wood opposed.*

2. Case V-24-24, 103 Carr Street, TMS# 532-05-00-054. Request for relief from the strict application of §156.321(C)(2) to allow an impervious coverage of 55.9%. The ordinance limits the impervious coverage of this lot to a maximum of 40%.

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Linda Balzac, architect, reviewed the request with the Board.

- Mr. Barrow asked if the Board's duty is to apply the law contained in the ordinance in an unbiased manner. Mr. Ward answered in the affirmative and stated that the Board should apply the variance criteria when determining the disposition of the request

- There being no comments, Mr. Wood closed public comment.

- *Ms. Hall moved for denial based on the findings that the four criteria for granting a variance have not been met. Mr. Barrow seconded the motion. Motion passes 6 to 1 vote with Mr. Barrow Mr. Branch, Mr. Hopkins, Ms. Steven, Ms. Hall and Mr. Wood in favor; Mr. Butner opposed.*

3. **Case V-25-24, 309 Bennett Street, TMS# 532-01-00-023. Request for relief from the strict application of §156.313(E)(5)(a) to allow a two-story accessory structure in the Old Village Historic District. The ordinance limits the number of stories for accessory structures to one and one-half in the historic district.**

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Linda Balzac, architect, reviewed the request with the Board.

- *Mr. Butner moved for denial based on the findings that the request does not meet the criteria for a variance. Mr. Branch seconded the motion. All in favor.*

4. **Case V-26-24, 1437 Barbara Street, TMS# 532-11-00-011. Request for relief from §156.303(Table) to allow a 10.3-foot encroachment into the setback.**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. James Daratony, owner, reviewed the request with the Board.

- Mr. Craig Donaldson, 1473 Cleary Lane, suggested that the addition should not be considered since there was no planning or permitting of the pergola. He suggested that since the pad was constructed, their property has increased flooding. He asked that the request not be approved.

- There being no further comments, Mr. Wood closed public comment.

- Mr. Daratony rebutted that the concrete pad was never permitted and that the concrete pad was submitted with the pergola. He suggested that the concrete pad did not cause any additional flooding in the area.

- Mr. Swalhah reiterated that the concrete pad was installed before the plans were approved. Mr. Daratony noted in a meeting with staff that the pad was poured because he had the opportunity to get free concrete prior to the plans being approved and the permit application was submitted after-the-fact. He stated that the concrete pad encroaches into the setback.

Ms. Stevens moved for deferral to the next meeting in order to get a timeline of when items were approved, built, along with the building officials associated with this item present to provide clarification. Mr. Hopkins seconded the motion.

Mr. Barrow moved to amend the motion to have all documentation forwarded to the Board at least ten days prior to the next meeting so the Board has ample opportunity to establish the timeline and determine facts of the case. Mr. Hopkins seconded the motion. All in favor.

Mr. Wood called for a vote on the motion as amended. All in favor.

There being no further business, the meeting adjourned at 7:16 pm.

Submitted by,
L. Lynes
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